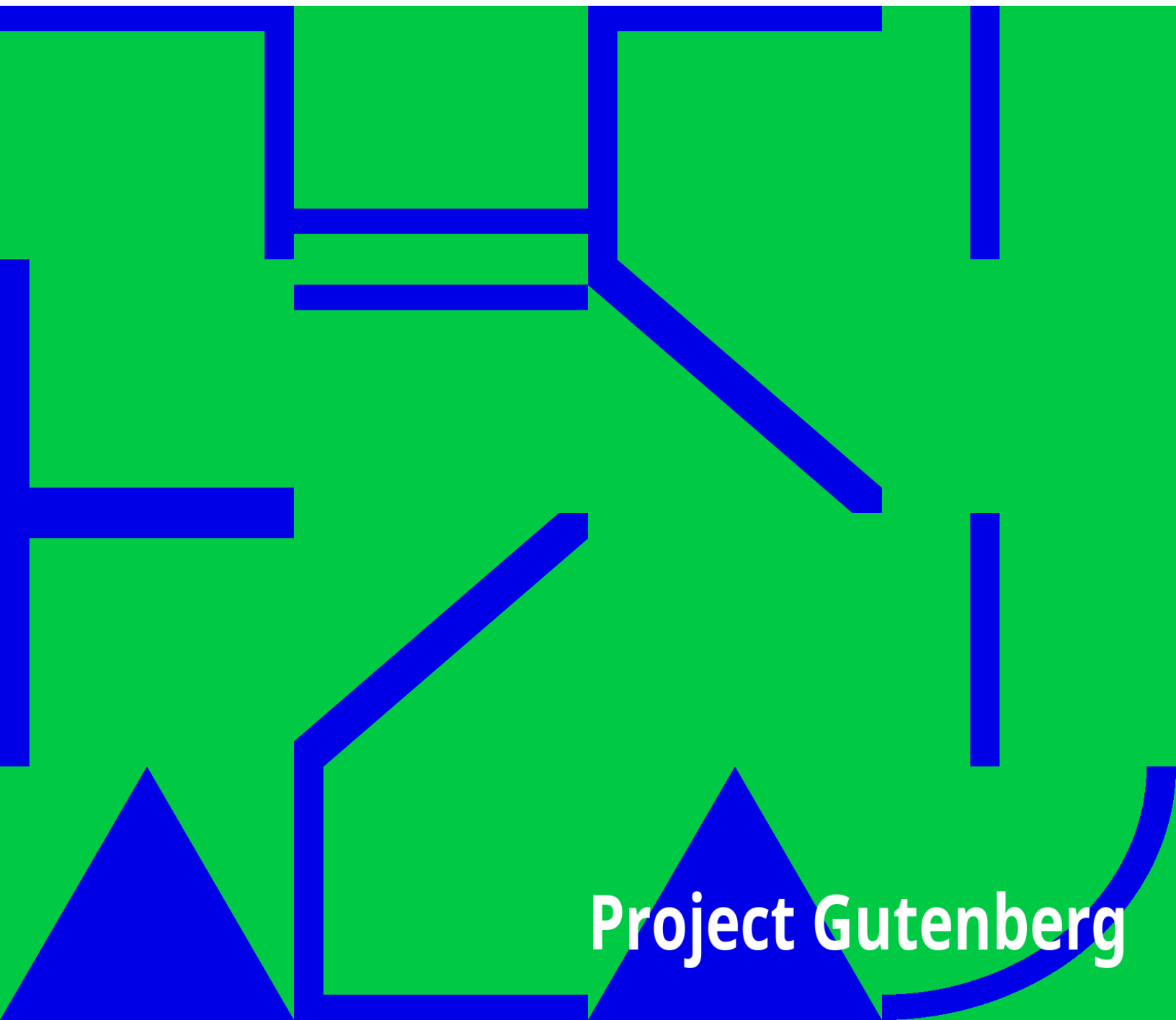


Problem on Balak

Roger D. Aycock

An abstract geometric pattern consisting of various blue lines and shapes on a green background. The pattern includes horizontal, vertical, and diagonal lines of varying thicknesses, as well as right-angled triangles and a curved line segment at the bottom right. The lines are arranged in a way that creates a sense of depth and complexity, with some lines intersecting and others running parallel.

Project Gutenberg

Problem on Balak

Roger D. Aycock



Project Gutenberg

The Project Gutenberg eBook of Problem on Balak

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Problem on Balak

Author: Roger D. Aycock

Illustrator: Dick Francis

Release date: October 4, 2010 [eBook #33839]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33839

Credits: Produced by Robert Cicconetti, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK PROBLEM ON
BALAK ***

PROBLEM ON BALAK

By **ROGER DEE**

Illustrated by **DICK FRANCIS**

[Transcriber's Note: This etext was produced from the September 1953 issue of Galaxy Science Fiction. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.]



What I'm getting at is that you don't ever have to worry about being bored stiff in Solar Exploitations field work. It never gets dull—and in some pretty strange places, at that.

*Sometimes you can
solve your problem
by running out on
it!*

Take the *S.E.2100*'s discovery of Balak, which is a little planet circling 70 Ophiuchi some 20,000 light-years from Earth, for example. You'd never

expect to run across the greatest race of surgeons in the Galaxy—structural, neural or what have you—on a little apple like that, any more than you'd expect a four man complement like ours to be handed the sort of life-and-death problem they put to us.

And, if by some miracle of prophecy you anticipated both, it's a cinch you'd never expect that problem to be solved in the way ours was.

Captain Corelli and Gibbons and I couldn't have gone more than a hundred yards from the *S.E.2100* before we met our first Balakian native. Or, to be more accurate, before he met us.

Corelli and I were filling our little sterilized bottles with samples of soil and vegetation and keeping a wary eye out for possible predators when it happened. Gibbons, our ecologist and the scientific mainspring of our crew, was watching a swarm of little twelve-legged bugs that were busily pollinating a dwarf shrub at the top and collecting payment in drops of white sap that oozed out at the bottom in return. His eyes were shining behind their spectacles, and he was swearing to himself in a pleased monotone.

"Signal the ship and tell the Quack—if you can pry that hypochondriac idiot away from his gargles and germicide sprays—to bring out a live-specimen container," he called to Captain Corelli. "We've stumbled onto something really new here, a conscious symbiosis between entirely dissimilar life-forms! If the rest of the flora and fauna cooperate like this...."

At the moment, Gibbons' discovery didn't register, because it was just then that the first Balakian showed himself.

The native looked at first glance something like a wrinkled pink octopus, standing three feet high and nearly as broad, and he walked in a skip-a-step swing like a man on crutches because his three short legs were set in a horizontal row. He had four arms to each side, the lower ones meant for grasping and holding and the upper ones for manipulation. He didn't have a

head, exactly, but there was a face of sorts up near the top of the body that looked like nothing so much as a politely grinning Oriental's.

He wasn't armed, but I took no chances—I dropped my specimen kit and yanked out the heat-gun that is a part of every S.E. field operative's gear. Captain Corelli, who was on the point of calling the Quack at the ship, took his thumb off the mike button and grabbed for his own weapon. Gibbons, like a true scientist, stood by with his mouth open, too interested to be scared.

Then the Balakian spoke, and Corelli and I gaped wider than Gibbons. As I said before, Balak is some 20,000 light-years from Earth, and to our knowledge we were the first human beings ever to come within a hundred parsecs of the place.

"Please don't shoot, gentlemen," he said to us in Terran. "My name is Gaffa, and I assure you that I am quite friendly."

I had to give Gibbons credit for being fast on his mental feet; he had taken over before Corelli and I could get our mouths closed, and was talking to the native as if this sort of thing happened every time we made planetfall.

"You speak Terran fluently," Gibbons said. "Or is this some sort of telepathic contact that creates the illusion of oral communication?"

The native grinned delightedly. "The contact is oral. We learned your language from an independent planet-hunter named Haslop, who was wrecked here some years ago."

In Solar Exploitations you learn to expect the unexpected, but to me this was stretching coincidence clear out of joint. We had the latest zero-interval-transference drive made, and I couldn't believe that any independent planet-staker could have beaten us here with outmoded equipment.

"A Terran?" I asked. "Where is he now?"

"Coming up," Gaffa said. "With my fellows."

A couple of dozen other Balakians, looking exactly like him, bore down on us through the dwarf shrubbery, and with them were two lanky Terrans dressed in loose shirt-and-drawers ensembles which obviously had been made on Balak. Even at a distance the Terrans looked disturbingly alike, and when they got closer I could see that they were identical twins.

"You don't count so good, chum," I said. "I see *two* Terrans."

"Only one," Gaffa corrected, grinning wider. "The other is one of us."

I didn't believe it, of course. Corelli didn't get it, either; his eyes had a glazed look, and he was shaking his head like a man with a gnat in his ear.

One of the Terrans rushed up to us with tears in his eyes and his Adam's apple bobbing, so overcome with emotion that I was afraid he might kiss us.

"I'm Ira Haslop," he said in a choked voice. "I've been marooned here for twenty-two eternal years, and I never thought I'd see a Terran face again. And now—"

He stopped, but not for breath. The other skinny Terran had grabbed his arm and swung him around.

"What the hell do you think you're doing, you masquerading nightmare?" the second one yelled. "*I'm* Ira Haslop, and you damn well know it! If you think you're going to pass yourself off as me and go home to Earth in my place...."

The first Haslop gaped at him for a moment; then he slapped the other's hand off his arm and shook a bony fist in his face.

"So that's your game! That's why these grinning freaks made you look like me and threw us together all these years—they've planned all along to ring in a switch and send you home instead of me! Well, it won't work!"

The second Haslop swung on him then and the two of them went to the mat like a pair of loose-drawered tigers, cursing and gouging. The grinning natives separated them after a moment and examined them carefully for damage, chattering away with great satisfaction in their own language.

Corelli and Gibbons and I stared at each other like three fools. It was impossible to think that either of the two men could be anything but what he claimed to be, a perfectly normal and thoroughly angry Terran; but when each of them swore that one of them—the other one, of course—was an alien, and the natives backed up the accusation, what else could we believe?

Gaffa, who seemed to be a sort of headman, took over and explained the situation—which seemed to be an incredibly long-range gag cooked up by these octopod jokers, without the original Haslop's knowledge, against the day when another Terran ship might land on Balak. Their real intent, Gaffa said, was to present us with a problem that could be solved only by a species with a real understanding of its own kind. If we could solve it, his people stood ready to assist us in any way possible. If not....

I didn't like the sound of it, so I reached for my heat-gun again. So did Captain Corelli and Gibbons, but we were too slow.

A little stinging bug—another link in the cooperative Balakian ecology—bit each of us on the back of the neck and we passed out cold. When we woke up again, we were "guests" of Gaffa and his tribe in a sort of settlement miles from the *S.E.2100*, and there wasn't so much as a nail file among us in the way of weapons.

The natives hadn't bothered to shackle us or lock us up. We found ourselves lying instead in the middle of a circular court surrounded by mossy mounds that looked like flattened beehives, but which were actually dwellings where the Balakians lived.

We learned later that the buildings were constructed by swarms of tiny burrowing brutes like termites, who built them up grain by grain according to specifications. I can't begin to explain the principle behind the harmony existing between all living things on Balak; it just was, and seemed to operate like a sort of hyper-sympathy or interlocking telepathy between species. Every creature on the planet performed some service for some

other creature—even the plants, which grew edibles without pain-nerves so it wouldn't hurt to be plucked, and which sent up clouds of dust-dry spores once a week to make it rain.

And the three-legged, eight-armed natives were right at the top of this screwy utopia, lords of it all.

Not that any of us were interested at first in it as an ecological marvel, of course. From the moment we woke up we were too busy with plans for escaping the trap we'd fallen into.

"The Quack is our only hope," Captain Corelli said, and groaned at the thought. "If that hypochondriac idiot has brains enough to sit tight, we may have a chance. If they get him, too, we're lost."

The Quack was a damned poor reed to lean on.

His name was Alvin Frick, but no one ever used it. He was twenty-nine, and would never have rated a space berth as anything but a hydroponics attendant, which is one step above manual labor. He was short, plump and scrubbed to the pink, and he was the only hypochondriac I ever knew in this modern age of almost no sickness. He grouched about the germs swarming in his reduction tanks, and he was scared green, in spite of his permanent immunization shots, that he'd contract some nameless alien disease at every planetfall. He dosed himself continuously with concoctions whipped up from an old medical book he had found somewhere, and he spent most of his off-duty time spraying himself and his quarters with disinfectant. His mania had only one good facet—if he had been the careless sort, hydroponics being what it is, he'd have smelled like a barnyard instead of a dispensary.

We had never made any attempt to get rid of him, since we might have drawn an even worse tank-farmer, but we began to wish now that we had. We had hardly begun to figure ways and means of escaping when a bunch of grinning natives swung into our court and deposited the Quack, sleeping soundly, in our midst.

He came to just before sundown, and when we told him what had happened, he promptly passed out again—this time from fright.

"A fine lot of help *you* are, you super-sterile slob," I said when he woke up for the second time. I'd probably have said worse, but it was just then that the real squeeze began.

Gaffa came back with the two scowling Haslops in tow and handed us the problem his tribe had spent twenty-two years in working up.

"We have learned enough already from Haslop," Gaffa said, "to know something of the pressures and complexities that follow the expansion of your Terran Realm through the galaxy, and to assure us that in time we must either become a part of that Realm or isolate ourselves completely.

"We are a peaceful species and feel that we should probably benefit as much from your physical sciences as your people would from our biological skills, but there is a question of compatibility that must be settled first, before we may risk making ourselves known to Terra. So we have devised a test to determine what our course shall be."

We raised our brows at one another over that, not guessing at the time just what the Balakians really had on the ball.

"For thousands of generations, we have devoted our energies to knowing ourselves and our environment," Gaffa said, "because we know that no species can be truly balanced unless it understands itself. The symbiosis between all life-forms on our planet is the result of that knowledge. We should like to assure ourselves that you are capable of understanding your own kind as well before we offer our services to your Terran Realm—and therein lies the test we have arranged for you."

Captain Corelli drew himself up stiffly. "I think," he said, "that the three of us should be able to unravel your little riddle, if you'll condescend to tell us what it is."

Gaffa sent a puzzled look at the Quack, and I could see that he was wondering why Corelli hadn't included him in the boast. But Gaffa didn't know how simple the Quack could be, nor how preoccupied with his own physiology he was.

"One of these two," said Gaffa, pointing to the two Haslops, "is the original Ira Haslop, who was stranded here twenty-two Terran years ago. The other is a synthetic creation of ours—an android, if you like, who is identical, cell by cell, with the original so far as exterior likeness is concerned. We could not duplicate the interior without dissection, which of course was out of the question, so we were forced to make compromises that—"

Gibbons interrupted him incredulously. "You mean you've created a living creature, brain and all?"

"Only the body," Gaffa said. "Creation of intelligence is still beyond us. The brain of the duplicate Haslop is one of our own, transplanted and conditioned to Haslop's knowledge, memories and ideology."

He paused for a moment, and the waiting circle of Balakians grinned with him in anticipation.

"Your problem is this," Gaffa said. "If you know yourselves well enough to merit our help, then you should be able to distinguish readily between the real and false Haslops. If you fail, we shall have no alternative but to keep you here on Balak for the rest of your lives, since to release you would bring other Terrans down on us in force."

And that was it. All we had to do was to take these two identical twins—who looked alike, thought alike and cursed alike—and determine which was real and which was bogus.

"For a very pertinent reason which you may or may not discover," Gaffa said, "the test must be limited to a few hours. You have until sunrise tomorrow morning, gentlemen."

And with that he crutched away at his skip-a-step walk, taking his grinning cohorts with him. The two Haslops remained behind, glowering and grumbling at each other.

The situation didn't look too bad at first.

"There are no two things," Captain Corelli declared, "that are exactly and absolutely identical. And that applies, I should say, especially to identities."

It had a heartening sound. I've never been long on logic, being a very ordinary S.E. navigator whose automatic equipment is designed to do practically everything for him, and Corelli seemed to know what he was talking about.

Gibbons, being a scientist, saw it differently.

"That's not even good sophistry," he said. "The concept of identity between two objects has no meaning whatever, Captain, unless we have a prior identification of one or the other. Aristotle himself couldn't have told an apple from a coconut if he'd never seen or heard of either."

"Any fool would know that," one of the Haslops grunted. And the other added in the same tone: "Hey, if you guys are going at it like that, we'll be here forever!"

"All right," Corelli said, deflated. "We'll try another tack."

He thought for a minute or two. "How about screening them for background detail? The real Haslop was a bounty-claimer, which means that he must have made thousands of planetfalls before crashing here. The bogus one couldn't remember the details of all those worlds as well as the original, no matter how many times he'd been told, could he?"

"Won't work," one of the Haslops said disgustedly. "Hell, after twenty-two years I can't remember those places myself, and I was *there*."

The other Haslop gave him a dirty look. "You were *here*, fellow—I was *there*."

And to the captain he said, "We're getting nowhere, friend. You're underestimating these Balakians—they look and act like screwballs, but they're sharp. In the twenty-two years I've lived with that carbon copy of myself, he's learned everything I know."

"He's right," Gibbons put in. He blinked a couple of times and turned pink. "Unless the real Haslop happened to be married, that is. I'm a bachelor myself, but I'd say there are some memories that a married man wouldn't discuss, even when marooned."

Captain Corelli stared at him admiringly. "I never gave you enough credit, Gibbons," he said. "You're right! How about—"

"Don't help any," one of the Haslops said morosely. "I never was married. And now I never will be if I've got to depend on you jerks to get me out of this mess."

The sun went down just then and a soft, drowsy darkness fell. I thought at first that we'd have to finish our investigation in the dark, but the natives had made provisions for that. A swarm of fireflies as big as robins sailed in from somewhere and circled around over the court, lighting it as bright as day. The Balakian houses made a dim row of flattened shadow-mounds at the outskirts of the circle. A ring of natives sat tailor-fashion on the ground in front of them—a neat trick considering that they had three legs each to fold up—and grinned at us.

They had waited twenty-two years for this show, and now that it had come they were enjoying every minute of it.

Our investigation was pretty rough going. The fireflies overhead all circled in one direction, which made you dizzy every time you looked up, and besides that the Quack had remembered that he was a prisoner in an alien environment and was at the mercy of any outlandish disease that might creep past his permanent immunization. He muttered and grumbled to himself about the risk, and his grouching got on our nerves even worse than usual.

I moved over to shut him up, and blinked when I saw him pop something into his mouth. My first guess was that he had managed to sneak some food concentrate out of the ship somehow, and the thought made me realize how hungry I was.

"What've you got there, Quack?" I demanded. "Come on, give—what are you hiding out?"

"Antibiotics and stuff," he answered, and pulled a little flat plastic case out of a pocket.

It was his portable medicine chest, which he carried the way superstitious people used to carry rabbits' feet, and it was largely responsible for our calling him the Quack. It was full of patent capsule remedies that he had gleaned out of his home medical book—a cut thumb, a surprise headache, or a siege of gas on the stomach would never catch the Quack unprepared!

"Jerk," I said, and went back to Gibbons and Corelli, who were arguing a new approach to our problem.

"It's worth a try," Gibbons said. He turned on the two Haslops, who were bristling like a pair of strange dogs. "This question is for the real Haslop: Have you ever been put through a Rorschach, thematic apperception or free association test?"

The real Haslop hadn't. Either of them.

"Then we'll try free association," Gibbons said, and explained what he wanted of them.

"*Water*," Gibbons said, popping it out quick and sharp.

"Spigot," the Haslops said together. Which is exactly what any spaceman would say, since the only water important to him comes out of a ship's tank. "Lake" and "river" and "spring," to him, are only words in books.

Gibbons chewed his lip and tried again, but the result was the same every time. When he said "payday" they both came back "binge," and when he said "man" they answered "woman!" with the same gleam in their eyes.

"I could have told you it wouldn't work," one Haslop said when Gibbons threw up his hands and quit. "I've lived so long with that phony that he even knows what I'm going to say next."

"I was going to say the same thing," the other one growled. "After twenty-two years of drinking and arguing with him, we've begun—God help me!—

to think alike."

I tried my own hand just once.

"Gaffa says that they are exactly identical so far as outside appearance goes," I said. "But he may be wrong, or lying. Maybe we'd better check for ourselves."

The Haslops raised a howl, of course, but it did them no good. Gibbons and Corelli and I ganged them one at a time—the Quack refused to help for fear of being contaminated—and examined them carefully. It was a lively job, since both of them swore they were ticklish, and under different circumstances it could have been embarrassing.

But it settled one point. Gaffa hadn't lied. They were absolutely identical, as far as we could determine.

We had given it up and were resting from our labors when Gaffa came grinning out of the darkness and brought us a big crystal pitcher of something that would have passed for a first-class Planet Punch except that it was nearer two-thirds alcohol than the fifty-fifty mix you get at most interplanetary ginmills.

The two Haslops had a slug of it as a matter of course, being accustomed to it, and the rest of us followed suit. Only the Quack refused, turning green at the thought of all the alien bacteria that might be swimming around in the pitcher.

A couple of drinks made us feel better.

"I've been thinking," Captain Corelli said, "about what Gaffa said when he limited the time of the test, that we might or might not discover the reason for ourselves. Now what the hell did the grinning heathen mean by that? Is there a reason, or was he only dragging a red herring across the bogus Haslop's track?"

Gibbons looked thoughtful. I sat back while he pondered and watched the Quack, who was swallowing another antibiotic capsule.

"Wait a minute," Gibbons exclaimed. "Captain, you've hit on something there!"

He stared at the Haslops. They stared back, unimpressed.

"Gaffa said you two were exactly alike outside," Gibbons said. "And we've proved it. Does that mean you're not alike *inside*?"

"Sure," one of them said. "But what of it? You're sure as hell not going to cut one of us open to see!"

"You're confusing the issue," Gibbons snapped. "What I'm getting at is this—if you two aren't made alike inside, then you can't possibly exist on the same sort of diet. One of you eats the same sort of food as ourselves. The other can't. But which is which?"

One of the Haslops pointed a quivering finger at the other. "It's him!" he said. "I've watched him drink his dinner for twenty-two years—he's the fake!"

"Liar!" the other one yelled, springing up. Corelli stepped between them and the second Haslop subsided, grumbling. "It's true enough, only *he's* the one that drinks his meals. This stuff in the pitcher is the food he lives on—alcohol for energy, with minerals and other stuff dissolved in it. I drink it with him for kicks, but that phony can't eat anything else."

Corelli snapped his fingers.

"So that's why they limited our time, and why they brought this stuff—to keep their fake Haslop refueled! All we've got to do to separate our men now is feed them something solid. The one that eats it is the real Haslop."

"Sure, all we need now is some solid food," I said. "You don't happen to have a couple of sandwiches on you, do you?"

Everybody got quiet for a couple of minutes, and in the silence the Quack surprised us all by deciding to speak up.

"Since I'm stuck here for life," he said, "a few germs more or less won't matter much. Pass me the pitcher, will you?"

He took a man-sized slug of the fiery stuff without even wiping off the pitcher's rim.

After that we gave it up, as who wouldn't have? Captain Corelli said the hell with it and took such a slug out of the pitcher that the two Haslops yelled murder and grabbed it quick themselves, and from then on we just sat around and drank and talked and waited for the sunrise that would condemn us to Balak for the rest of our lives.

Thinking about our problem had reminded me of an old puzzle I'd heard somewhere about three men being placed in a room where they can see each other but not themselves; they're shown three white hats and two black ones, and then they're blindfolded and a hat is put on each of their heads. When the blindfolds are taken off, the third man knows by looking at the other two and by what they say just what color hat he's wearing himself, but I always forget how it is that he knows.

We got so interested in the hat problem that the east was turning pink before we realized it.

None of us actually saw the sun rise, though, except the Quack and the bogus Haslop.

I was right in the middle of a sentence when all of a sudden my stomach rolled over and growled like a dying tiger, and I never had such an all-gone feeling in my life. I looked at the others, wondering if the stuff in the pitcher had poisoned us all, and saw Gibbons and Corelli staring at each other with the same startled look in their eyes. One of the Haslops was hit, too—he had the same pinched expression around the mouth, and perspiration stood out on his forehead in drops as big as grapes.

And then the four of us were on our feet and dashing for open country, leaving the Quack and the remaining Haslop staring after us. The Haslop

who stayed looked puzzled, I thought, but the Quack only seemed interested and very much entertained.

I couldn't be sure of that, though. There wasn't time to look twice.

When we came back to the court later, shaken and pale and bracing ourselves for another dash at any minute, we found Gaffa and his grinning chums congratulating the Quack. The bogus Haslop had dropped his impersonation act and seemed very happy.

"I've learned to like Haslop so well after twenty-two years," he said, "that I'm quite prejudiced in favor of his species, and I'm delighted that we are to join your Realm. Balak and Terra will get along famously, I know, since you people are so ingenious and appreciative of humor."

We ignored the Balakians and swooped down on the Quack.

"You put something in that pitcher after you drank out of it, you insult to humanity," I said. "What was it?"

The Quack backed off with a wary look in his eye.

"A recipe from the curiosa section of my medical book," he said. "I whipped up some capsules for my pocket kit, just in case of emergency, and I couldn't help thinking of them when—"

"Never mind the buildup," Captain Corelli said. "*What was it?*"

"A formula invented by ancient Terran bartenders, and not recommended except in extreme cases," the Quack said. "With a very odd name. It's called a twin Mickey."

We'd probably have murdered him then and there if the Quack's concoction had let us.

Later on we had to admit that the Quack had actually done us a service, since his identifying the real Haslop saved us from being marooned for life on Balak. And the Balakians were such an immediate sensation in the

Terran Realm that the Quack's part in their admittance made him famous overnight. Somebody high up in Government circles got him out of Solar Exploitations field work and gave him a sinecure in an antibiotics laboratory, where he wound up as happy as a pig in a peanut field.

Which points up the statement I made in the beginning, that one thing you never have to worry about in Solar Exploitations work is being bored.

You see what I mean?

*** END OF THE PROJECT GUTENBERG EBOOK PROBLEM ON
BALAK ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.